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County: los-angeles

Division: Civil Law and Motion

Department: 11

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Case Number: 23STCV03047 Hearing Date: July 16, 2026 Dept: 11

.Preliminary

Approval of Class Action Settlement

Department

11

Ernestina Acevedo, et al. v. Leyen Food, LLC,

et al.

Case No. 23STCV03047

Hearing:

July 16, 2025

TENTATIVE

RULING

CONTINUE

preliminary approval for the parties to address the issues listed in the

accompanying checklist.

BACKGROUND

This

is a wage and hour class action. On February

10, 2023, Plaintiffs Ernestina Acevedo (“Acevedo”) and Jorge Rodriguez Ramos

(“Ramos”) (jointly, “Plaintiffs”), individually and on behalf of all other

similarly situated, commenced this action against Defendants Leyen Food, LLC

(“Leyen”), JJJ Management, Inc. (“JJJ”), Employee Force Provider, Inc. (“EFP”), Hou You Liang (“HY Liang”), Jeffrey Liang (“J. Liang”), and Does 1 through 100 (collectively, “Defendants”) asserting the following causes of action: (1) failure to pay overtime; (2) failure to pay minimum wages; (3) failure to provide meal periods; (4) failure to provide rest periods; (5) failure to pay all wages upon termination; (6) failure to provide accurate wage statements; (7) violation of Labor Code §2802, and (8) unfair competition.

On May 24, 2023, Plaintiffs filed the Operative First Amended Class Action Complaint ("FAC") adding a cause of action for civil penalties pursuant to Labor Code §2699, the Private Attorneys General Act ("PAGA").

On June 26, 2023, Defendants Leyen, JJJ, HY Liang, and J. Liang filed a joint Answer to the FAC. On the same day, Defendant EFP filed a separate Answer to the FAC.

On August 14, 2024, the parties participated in an all-day mediation presided over by Nikki Tolt, Esq. (“Mediator Tolt”). (Nourmand Decl., ¶5.) At mediation, the parties reached an impasse and Mediator Tolt issued a mediator's proposal as to Plaintiff Ramos's claims against EFP, which was ultimately accepted by the parties. (Ibid.) A fully executed Class Action and PAGA Settlement Agreement (“Settlement Agreement” or “Agreement”) is attached to the counsel Nourmand’s declaration as Exhibit 1.

On August 1, 2025, Plaintiffs’ counsel informed the Court that the parties had reached a partial settlement of Plaintiff Ramos’s claims against Defendant EFP.

Now before the Court is the Motion for Preliminary Approval of Class Action Settlement, filed on February 2, 2026.

SETTLEMENT CLASS DEFINITION

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"Class" means all persons

employed by EFP as a non-exempt hourly employee who was placed to work at Leyen Food, LLC in California during the Class Period. (Settlement Agreement, ¶1.5)

o "Class Period" means the period from February 10, 2019 until the total workweeks reaches 1,749 workweeks. (¶1.12)

§ The parties must resolve any uncertainty regarding the Class/PAGA Periods prior to preliminary approval being granted and notice being distributed. Based on current records, the parties and the Administrator must review and verify the end dates of the Class/PAGA Periods and revise the Class and PAGA Period definitions. Ensure that the Notice and Proposed Order are also updated.

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"Aggrieved Employee" means a person employed by EFP as a non-exempt hourly employee who was placed to work at Leyen Food, LLC in California during the PAGA Period. (¶1.4)

o "PAGA Period" means the period from February 10, 2022 until the end of the Class Period. (¶1.30)

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“Class Representative” is Plaintiff Jorge Rodriguez Ramos. (¶1.13)

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Based on a review of its records to date, EFP estimates there are approximately [75] Class Members who collectively worked a total of 1,749 Workweeks, and approximately [58] Aggrieved Employees who worked a total approximately [1,182] PAGA Pay Periods. (¶4.1)

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The Parties agree that class certification and representative treatment is for purposes of this Settlement only. (¶10.1)

TERMS OF SETTLEMENT AGREEMENT

The essential
terms are as follows:

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The
Gross Settlement Amount (“GSA”) is $70,000,
non-reversionary. (¶¶1.21, 3.1)

o In the event EFP fails to fully comply with
the terms of this Settlement Agreement, and in consideration for the acceptance
of the Gross Settlement Amount Walter Ramirez hereby irrevocably, absolutely
and unconditionally personally guarantees to Plaintiff Ramos the prompt and
complete payment of the Gross Settlement Amount and employer's share of payroll
taxes, thereon, when due. Walter Ramirez hereby waivers the right to assert any
defenses he may have to his liability for the Gross Settlement Amount and employer's
share of payroll taxes, thereon, in case of a default by EFP. (¶8)

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The
Net Settlement Amount (“Net”) ($10,666.67) is the GSA minus the
following:

o Up to $23,333.33 (1/3 of GSA) for
attorney fees (¶3.2.2);

o Up to $20,000 for litigation costs (Ibid.);

o Up to $5,000 for a Service Payment to
the Named Plaintiff (¶3.2.1);

o Up to $6,000 for settlement
administration costs (¶3.2.3); and

o Payment of $5,000 PAGA Penalties (75% or
$3,750 to the LWDA) (¶3.2.5).

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Defendant

will separately pay any and all employer payroll taxes owed on the Wage
Portions of the Individual Class Payments. (¶3.1)

· Funding of GSA: EFP
shall fully fund the Gross Settlement Amount, and also fund the amounts necessary to fully pay EFP's share of payroll taxes by transmitting the funds to the Administrator no later than 30 calendar days after the Effective Date. (¶4.3)

·

Distribution
of GSA: Within
7 calendar days after EFP funds the Gross Settlement Amount and employer's share of payroll taxes, the Administrator will mail checks for all Individual Class Payments, all Individual PAGA Payments, the LWDA PAGA Payment, the Administration Expenses Payment, the Class Counsel Fees Payment, the Class Counsel Litigation Expenses Payment, and the Class Representative Service Payment. Disbursement of the Class Counsel Fees Payment, the Class Counsel Litigation Expenses Payment and the Class Representative Service Payment shall not precede disbursement of Individual Class Payments and Individual PAGA Payments. (¶4.4)

·

There
is no claim form requirement. (¶3.1)

·

Individual Settlement Payment Calculation: An Individual Class Payment calculated by (a) dividing the Net Settlement Amount by the total number of Workweeks worked by all Participating Class Members during the Class Period and (b) multiplying the result by each Participating Class Member's Workweeks. (¶3.2.4) Non-Participating Class Members will not receive any Individual Class Payments. The Administrator will retain amounts equal to their Individual Class Payments in the Net Settlement Amount for distribution to Participating Class Members on a pro rata basis. (¶3.2.4.3)

o Tax Allocation: 20% wages and 80% interest penalties. (¶3.2.4.1)

·

PAGA
Payments: The
Administrator will calculate each Individual PAGA Payment by (a) dividing the

amount of the Aggrieved Employees' 25% share of PAGA Penalties ($1,250) by the total number of PAGA Period Pay Periods worked by all Aggrieved Employees during the PAGA Period and (b) multiplying the result by each Aggrieved Employee's PAGA Period Pay Periods.
(¶3.2.4.1) If
the Court approves PAGA Penalties of less than the amount requested, the Administrator will allocate the remainder to the Net Settlement Amount. (¶3.2.4.2)

o Tax Allocation: 100% penalties. (¶3.2.4.2)

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The
Settlement contains two paragraphs numbered ¶3.2.4.1 and two paragraphs numbered ¶3.2.4.2.

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"Response Deadline" means 45 days
after the Administrator mails Notice to Class Members and Aggrieved Employees and shall be the last date on which Class Members may: (a) fax or mail Requests for Exclusion from the Settlement, or (b) fax or mail his, her, or their Objection to the Settlement. Class Members to whom Notice Packets are resent after having been returned undeliverable to the Administrator shall have an additional 15 calendar days beyond the Response Deadline has expired. (¶¶1.42, 7.4.4) The same deadlines apply to the submission of challenges to estimated payment amounts, which must be submitted via fax or mail. (¶7.6)

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Uncashed Settlement Checks: The face of each check shall prominently state the date (not less than 180 days after the date of mailing) when the check will be voided. The Administrator will cancel all checks not cashed by the void date. (¶4.4.1) For any Class
Member whose Individual Class Payment check or Individual PAGA Payment check is uncashed and cancelled after the void date, the Administrator shall transmit the funds represented by such checks to the California Unclaimed Property Fund in the name of the Class Member thereby leaving no "unpaid residue" subject to the requirements of Code of Civil Procedure section 384, subdivision (b). (¶4.4.3)

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The

settlement administrator will be Phoenix Class Action Administration Solutions. (¶¶1.2, 7.1)

o Provide evidence of the qualifications and experience of the Administrator.

· Counsel submitted the proposed settlement agreement to the LWDA on February 2, 2026. (Nourmand Decl., ¶33, Ex. 2.)

· The named Plaintiff and class members will release certain claims against Defendant. (See further discussion below).

ANALYSIS OF SETTLEMENT AGREEMENT

A. Does a presumption of fairness exist?

1. Was the settlement reached through arm’s-length bargaining?
On August 14, 2024, the parties participated in an all-day mediation presided over by Nikki Tolt, Esq. (“Mediator Tolt”). (Nourmand Decl., ¶5.) At mediation, the parties reached an impasse and Mediator Tolt issued a mediator's proposal as to Plaintiff Ramos's claims against EFP, which was ultimately accepted by the parties. (Ibid.) A fully executed Class Action and PAGA Settlement Agreement (“Settlement Agreement” or “Agreement”) is attached to the counsel Nourmand’s declaration as Exhibit 1.

2. Were investigation and discovery sufficient to allow counsel and the court to act intelligently? Yes. Counsel represents that the parties engaged in formal and informal discovery and Plaintiff obtained: 1) a sampling of time and payroll records for the class; 2) total number of class members during the class period, 3) the average hourly rate, etc. (Nourmand Decl., ¶5.) Furthermore, counsel for the parties investigated the law as applied to the facts discovered regarding the alleged

claims, potential defenses, and potential damages. (Ibid.)

Provide more information
regarding the sample, such as the percentage of data reviewed, and whether
counsel relied on an expert's analysis.
Demonstrate that the sample is statistically reliable.

3.
Is counsel experienced in similar
litigation? Yes. Class
Counsel is experienced in class action litigation, including wage and hour class
action cases. (Nourmand Decl., ¶¶20-22.)

4. What
percentage of the class has objected? This cannot be
determined until the fairness hearing.
See Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial
(The Rutter Group 2014) ¶ 14:139.18, ("Should the
court receive objections to the proposed settlement, it will consider and
either sustain or overrule them at the fairness hearing.")

CONCLUSION: The settlement is entitled to a presumption
of fairness.

B.
Is
the settlement fair, adequate, and reasonable?

1.
Strength of Plaintiffs' case. "The most important
factor is the strength of the case for plaintiffs on the merits, balanced against the amount offered in
settlement." (Kullar v. Foot Locker Retail, Inc. (2008) 168 Cal.App.4th 116, 130.)

Counsel
provided the following exposure analysis:

Claim

Maximum Exposure

Unpaid Wages (Overtime)

$7,818.74

Unpaid Wages (Minimum)

$9,771.60

Meal Breaks

$45,870.75

Rest Breaks

$131,052.15

Wage Statement Penalties

$115,830

Waiting Time Penalties

$299,700

PAGA Penalties

$118,200

Total

$728,243.24

(Nourmand Decl., ¶15.)

2.
Risk, expense, complexity and likely duration of further litigation. Given the nature of the class claims, the case is likely to be expensive and lengthy to try. Procedural hurdles (e.g., motion practice and appeals) are also likely to prolong the litigation as well as any recovery by the class members.

3. Risk of maintaining class action status
through trial. Even if a class is
certified, there is always a risk of decertification. (See Weinstat
v. Dentsply Intern., Inc. (2010) 180
Cal.App.4th 1213, 1226 (“Our Supreme Court has recognized that
trial courts should retain some flexibility in conducting
class actions, which means, under
suitable circumstances, entertaining successive motions on certification if the
court subsequently discovers that the propriety of a class action is not
appropriate.”).)

4. Amount
offered in settlement.

Plaintiff’s counsel obtained a Gross
Settlement Amount of $70,000. The
settlement amount is 9.6% of the maximum exposure, which is within the
“ballpark” of reasonableness.

The
$70,000 settlement amount, after reduction by the requested deductions, leaves $10,666.67
to be divided among approximately 75 class members. The resulting payments will average $142.22. ($10,666.67 / 75 = $142.22)

5. Extent
of discovery completed and stage of the proceedings. As indicated above, at the time of the
settlement, Class Counsel conducted sufficient discovery.

6. Experience
and views of counsel. The settlement
was negotiated and endorsed by Class Counsel who, as indicated above, is
experienced in class action litigation, including wage and hour class actions.

7. Presence of a governmental participant. This factor is not applicable here.

8. Reaction of the class members to the
proposed settlement. The class members’ reactions will not be known until
they receive notice and are afforded an opportunity to object, opt-out and/or
submit claim forms. This factor becomes

relevant during the fairness hearing.

CONCLUSION: The settlement can be preliminarily deemed “fair, adequate, and reasonable.”

C.
Scope
of the release

Effective on the date when EFP fully funds the entire Gross Settlement Amount and funds all employer payroll taxes owed on the Wage Portion of the Individual Class Payments, Plaintiff Ramos, Class Members, and Class Counsel will release claims against all Released Parties as follows: (¶5)

· Release by Participating Class Members Who Are Not Aggrieved Employees: All Participating Class Members, on behalf of themselves and their respective former and present representatives, agents, attorneys, heirs, administrators, successors and assigns, release Released Parties from (i) all claims that were alleged, or reasonably could have been alleged, based on the Class Period facts stated in the Operative Complaint including, (a) any and all claims involving any alleged failure to pay overtime wages; (b) failure to pay minimum wages; (c) failure to provide meal periods; (d) failure to provide rest periods; (e) failure to pay all wages upon termination; (f) failure to provide accurate wage statements; (g) violation of Labor Code §2802; and (h) unfair competition based on the asserted Labor Code violations. Except as set forth in Section 5.3 of this Agreement, Participating Class Members do not release any other claims including claims for vested benefits, wrongful termination, violation of the Fair Employment and Housing Act, unemployment Insurance, disability, social security, workers' compensation or claims based on facts occurring outside the Class Period. The Release by Participating Class Members expressly carves out any claims that they have or may have against the remaining defendants, Leyen Food, LLC, JJJ Management, Inc., Hou You Liang, and Jeffrey Liang in the Action. (¶5.2)

· Release by Non-Participating Class Members Who Are Aggrieved Employees: All Non-Participating Class Members who are Aggrieved Employees are deemed to release, on behalf of themselves and their respective former and present representatives, agents, attorneys, heirs, administrators, successors and assigns, the Released Parties from all claims for PAGA penalties that were

alleged, or reasonably could have been alleged, based on the PAGA Period facts
stated in the Operative Complaint and the PAGA Notice including, (a) any and
all claims involving any alleged failure to pay overtime wages; (b) failure to
pay minimum wages; (c) failure to provide meal periods; (d) failure to provide
rest periods: (e) failure to pay ail wages upon termination; (f) failure to
provide accurate wage statements; and (g) violation of Labor Code §2802. The
Release by Non-Participating Class Members Who Are Aggrieved Employees
expressly carves out any claims that they have or may have against the
remaining defendants, Leyen Food, LLC, JJJ Management, Inc., Hou You Liang, and
Jeffrey Liang in the Action. (¶5.3)

o

"PAGA Notice"

means Plaintiff Ramos' PAGA letter to EFP and the LWDA providing notice
pursuant to Labor Code section 2699.3, subdivision (a). (¶1.32) [Provide a copy of Plaintiff's notice letter to the LWDA.]

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Because future PAGA claims

are subject to claim preclusion upon entry of the Judgment, Non-Participating
Class Members who are Aggrieved Employees are deemed to release the claims
identified in Paragraph 5.3 of this Agreement and are eligible for an Individual
PAGA Payment. (¶7.5.4)

o

Why is the release in ¶5.3 of the Agreement

limited to "Non-Participating Class Members Who Are Aggrieved Employees?" Why does it not apply to Participating Class
Members who are also Aggrieved Employees?

· Named Plaintiff additionally provides a general release and a
§1542 waiver as to Defendant. Plaintiff
Ramos' Release expressly carves out any claims that he has or may have against
the remaining defendants, i.e., Leyen Food, LLC, JJJ Management, Inc., Hou You
Liang and Jeffrey Liang, in the Action. (¶5.1)

· "Released Parties" means EFP and each of its former and
present directors, officers, shareholders, owners, members, attorneys,
insurers, predecessors, successors, assigns, subsidiaries, and affiliates. (¶1.40)

D.

May

conditional class certification be granted?

1.

Standards

A detailed analysis of the elements required

for class certification is not required, but it is advisable to review each

element when a class is being conditionally certified (Amchem Products, Inc. v. Winsor (1997) 521 U.S. 620, 622-627.) The trial court can appropriately utilize a

different standard to determine the propriety of a settlement class as opposed

to a litigation class certification.

Specifically, a lesser standard of scrutiny is used for settlement

cases. (Dunk at 1807, fn. 19.)

Finally, the Court is under no “ironclad requirement” to conduct an

evidentiary hearing to consider whether the prerequisites for class

certification have been satisfied. (Wershba

at 240.)

2.

Analysis

a.

Numerosity. There are approximately 75 class

members. (Nourmand Decl., ¶24.) This

element is met.

b.

Ascertainability. The proposed class is defined above. The class definition is “precise, objective

and presently ascertainable.” (Sevidal v. Target Corp. (2010) 189

Cal.App.4th 905, 919.) The class members

are identifiable from Defendant’s records. (Nourmand Decl., ¶24.)

c.

Community of interest. “The community of

interest requirement involves three factors: ‘(1) predominant common questions

of law or fact; (2) class representatives with claims or defenses typical of

the class; and (3) class representatives who can adequately represent the

class.’” (Linder v. Thrifty Oil Co. (2000) 23 Cal.4th 429, 435.)

As

to commonality, Counsel contends that here, common issues, without limitation, include whether EFP violated applicable wage laws, i.e., failed to pay its non-exempt employees overtime wages, failed to provide meal and rest breaks, failed to provide compliant wage statements, and failed to timely pay all earned wages to terminated and/or resigned employees. (Nourmand Decl., ¶26.)

As to typicality, Counsel contends that in this case, Plaintiff's claims are precisely the same as those of the class he seeks to represent: like other members of the Class, he was employed by EFP during the relevant time period, performed similar duties for EFP, and EFP's policies were uniformly applied to its employees. (Nourmand, ¶28.)

As to adequacy, Plaintiff does not have any conflicts of interest with the Class, has been active in the litigation of the action, and is represented by adequate counsel. (Nourmand Decl., ¶¶29-30; see Declaration of Jorge Rodriguez Ramos.)

d. Adequacy of class counsel.

As indicated above, Class Counsel has shown experience in class action litigation, including wage and hour class actions.

e. Superiority. Given the relatively small size of the individual claims, a class action appears to be superior to separate actions by the class members.

CONCLUSION: The class may be conditionally certified since the prerequisites of class certification have been satisfied.

E. Is the notice proper?

1. Content of class notice. The proposed notice is attached to the Settlement Agreement as Exhibit A. The Notice's content appears to be acceptable. It includes information such

as: a summary of the litigation; the nature of the settlement; the terms of the settlement agreement; the proposed deductions from the gross settlement amount (attorney fees and costs, enhancement awards, and claims administration costs); the procedures and deadlines for participating in, opting out of, or objecting to, the settlement; the consequences of participating in, opting out of, or objecting to, the settlement; and the date, time, and place of the final approval hearing.

Class Notice will be mailed in English and Spanish. (¶1.11)

Address the following issues in the Notice:

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Funding Deadline: The Settlement Agreement states that Defendant will fund the settlement “no later than 30 calendar days after the Effective Date.” (¶4.3) However, the Notice states that Defendant will fund the settlement “not more than 14 days after the Judgment entered by the Court becomes final.” (¶3.1) Ensure that the deadlines set forth in the Agreement and Notice are consistent.

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The Notice at ¶¶6 and 7 should clarify that requests for exclusion and written objections may be submitted to the Administrator via fax or mail, as set forth in the Settlement Agreement at ¶¶1.42, 7.5.1, 7.7.2.

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According to ¶7 of the Notice, Class Members “can obtain copies of the these [sic] documents by visiting the Court's website at https://www.lacourt.org/Daos/v2public/DocumentImages/SearchCaseNumber and enter the case number, 23STCV03047.” The link provided directs Class Members to a general page rather than the page where they can search for the case documents.
Provide a direct link to the appropriate page or include instructions explaining how Class Members can navigate to the appropriate page.

2.

Method of class notice.

Class
Data: Not later than 14 calendar days after the Court grants Preliminary Approval of the Settlement, EFP will simultaneously deliver the Class Data to the Administrator, in the form of a Microsoft Excel spreadsheet. (¶4.2)

Notice by direct mail. Using
best efforts to perform as soon as possible, and in no event later than 14 calendar days after receiving the Class Data, the Administrator will send to all Class Members identified in the Class Data, via first-class USPS mail, the Class Notice with Spanish translation.
Before mailing Class Notices, the Administrator shall update Class Member addresses using the National Change of Address database. (¶7.4.2)

Not
later than 3 business days after the Administrator's receipt of any Class Notice returned by the USPS as undelivered, the Administrator shall re-mail the Class Notice using any forwarding address provided by the USPS. If the USPS does not provide a forwarding address, the Administrator shall conduct a Class Member Address Search, and re-mail the Class Notice to the most current address obtained. The Administrator has no obligation to make further attempts to locate or send Class Notice to Class Members whose Class Notice is returned by the USPS a second time. (¶7.4.3) The deadlines for Class Members' written objections. Challenges to Workweeks and/or Pay Periods and Requests for Exclusion will be extended an additional 15 days beyond the 45 days otherwise provided in the Class Notice for all Class Members whose notice is re-mailed. The Administrator will inform the Class Member of the extended deadline with the re-mailed Class Notice. (¶7.4.4)

Notice of the date, time, and location of the
Final Approval Hearing and the Final Judgment will be posted on the settlement administrator’s website. (¶7.8.1)

3.
Cost of class notice. As indicated above, claims administration costs are estimated to equal approximately $6,000.
Prior to the time of the final fairness hearing, the claims administrator must submit a declaration attesting to the total costs incurred and anticipated to be incurred to finalize the settlement for approval by the Court.

F. Attorney fees and costs

CRC rule 3.769(b) states: “Any agreement, express or implied, that has been entered into with respect to the payment of attorney fees or the submission of an application for the approval of attorney fees must be set forth in full in any application for approval of the dismissal or settlement of an action that has been certified as a class action.”

Ultimately, the award of attorney fees is made by the court at the fairness hearing, using the lodestar method with a multiplier, if appropriate. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095-1096; Ramos v. Countrywide Home Loans, Inc. (2000) 82 Cal.App.4th 615, 625-626; Ketchum III v. Moses (2000) 24 Cal.4th 1122, 1132-1136.) In common fund cases, the Court may utilize the percentage method, cross-checked by the lodestar. (Laffitte v. Robert Half Int’l, Inc. (2016) 1 Cal.5th 480, 503.) Despite any agreement by the parties to the contrary, “the court ha[s] an independent right and responsibility to review the attorney fee provision of the settlement agreement and award only so much as it determined reasonable.” (Garabedian v. Los Angeles Cellular Telephone Company (2004) 118 Cal.App.4th 123, 128.)

The question of whether Class Counsel is entitled to $23,333.33 (1/3 of GSA) in attorney fees will be addressed at the fairness hearing when class counsel brings a noticed motion for attorney fees.
Class counsel must provide the court with billing information so that it can properly apply the lodestar method and must indicate what multiplier (if applicable) is being sought as to each counsel. Class Counsel should also be prepared to justify the costs (capped at $20,000) sought by detailing how they were incurred.

G. Incentive Award to Class Representative

Class Counsel will seek an Enhancement Award of $5,000 for the Named Plaintiff. In connection with the final fairness hearing, the named Plaintiff must submit a declaration attesting to why he should be entitled to an enhancement award in the proposed amount. The named Plaintiff must explain why he “should be compensated for the expense or risk [he] has incurred in conferring a benefit on other members of the class.” (Clark v. American Residential Services LLC (2009) 175 Cal.App.4th 785, 806.) Trial courts should not sanction enhancement awards of thousands of dollars with “nothing more than pro forma claims as to ‘countless’ hours expended, ‘potential stigma’ and ‘potential risk.’ Significantly more specificity, in the form of quantification of time and effort expended on the litigation, and in the form of reasoned explanation of financial or other risks incurred by the named plaintiff, is required in order for the trial court to conclude that an enhancement was ‘necessary to induce [the named plaintiff] to participate in the suit . . . .’” (Id. at 806-807, italics and ellipsis in original.) The Court will decide the issue of the enhancement awards at the time of final approval.

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LOS ANGELES SUPERIOR COURT, COMPLEX CIVIL DEPARTMENT

CHECKLIST FOR

PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT

Department: SSC-11

RE: Ernestina Acevedo, et al. v. Leyen Food, LLC, et al. (Case No. 23STCV03047)

In reviewing your motion for preliminary approval of class action settlement, the Court orders further briefing on the items checked below.

The additional briefing shall be due by _____________________________________, 2026. Note: if briefing is not filed by said date the hearing will be placed off calendar. Your hearing date set for ______________, is continued to the first available date of _________ at _____ in Department 11.

This checklist

provides direction on what information and argument the court requires to grant a motion for preliminary approval of a class action settlement. All parties are urged to carefully review the checklist and fully comply with each item that applies to the case in order that the motion may be promptly ruled upon. The content of the motion should follow the same order as this checklist, as that is how the judge and research attorney review the motion.

You should also consider using the form wage and hour settlement agreements now available on the court's website at https://www.lacourt.org/forms/all – "Civil Forms" section. With input and unanimous consensus from an Ad Hoc Wage and Hour Committee (chaired by Judge Hogue and Judge Cunningham and comprised of 8 plaintiff's attorneys and 8 defense attorneys), the court has posted: (1) a form class action settlement agreement, (2) a form class action/PAGA settlement agreement, (3) and a form PAGA settlement agreement. Using these forms should cut down on attorney negotiation time and reduce the lag time between a successful mediation and execution of a long form agreement. Filing a motion that is based on a form agreement and includes a redlined copy identifying modifications will also expedite the court's review process and help reduce the current backlog on hearings. These forms are encouraged but entirely optional.

I.

MOVING PAPERS (Motion and Declarations)

All facts submitted for the court to consider must be provided in the form of a declaration or other admissible evidence. The court will not consider facts stated only in the motion.

A. Introductory Information

¿ Summary of the litigation, including identity of the parties, brief procedural history, claims asserted, and general factual basis for the claims.

B. Dunk/Kullar Analysis

¿ Summary of the case, including the legal and factual basis for each claim. (Kullar

v. Foot Locker Retail, Inc. (2008) 168 Cal.App.4th 116, 133 (Kullar); Munoz v. BCI Coca-Cola Bottling Co. of Los Angeles (2010) 186 Cal.App.4th 399, 409.)

¿ Summary of the investigation and discovery conducted, including the specific documents reviewed prior to agreeing to settle the case. (Dunk v. Ford Motor Co. (1996) 48 Cal.App.4th 1794, 1802, as modified Sept. 30, 1996 (Dunk).) If counsel's analysis was informed by a data sample, show that the sample is statistically reliable.

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Class Counsel states that Plaintiff obtained a sampling of time and payroll records for the class. (Nourmand Decl., ¶5.) Provide more information regarding the sample, such as the percentage of data reviewed, and whether counsel relied on an expert's analysis. Demonstrate that the sample is statistically reliable.

¿ Summary of settlement negotiations, including when the settlement was reached, and whether the parties were assisted by a mediator. (Dunk, supra, 48 Cal.App.4th at p. 1802.)

¿ A summary of the risks, expenses, complexity, and duration of further litigation if the

settlement is not approved.

¿ A summary of the risks of achieving and maintaining class action status.

¿ Specific information sufficient for the court to make an independent determination that the consideration being received for the release of class members' claims is reasonable in light of the strengths and weaknesses of the claims and the risks of the particular litigation. (Kullar, supra, 168 Cal.App.4th at 129.) This discussion should specify the maximum realistic recovery of each claim asserted in the operative complaint, defenses asserted by Defendant, and any other relevant factors justifying the amount offered in

settlement. If the settlement is predicated on a payment plan or is predicated
on defendant’s financial situation, admissible evidence of Defendant’s
financial situation should be provided, including appropriate financial
documents such as a balance sheet, statement of cash flows, profit and loss
statement, and the like.

¿ If
approval of the settlement of class claims is requested together with approval
of non-class claims (such as claims under the Labor Code’s Private Attorney
General Act (PAGA)) discuss why the amount allocated to the non-class claims is
fair to those affected. See Moniz v. Adecco USA, Inc. (2021) 72
Cal.App.5th 56, 77 (Moniz).

C. Class
Certification

¿
Numerosity: Total number of members in the settlement class and number of
members in each sub-class (if applicable).

¿
Ascertainability: The manner by which members of the class will be identified
and when. (Noel v. Thrifty Payless (2019) 7 Cal.5th 955.)

¿
Community of Interest: Discuss specific facts showing that the proposed class
representatives have claims or defenses typical of the class and can adequately
represent the class. (Linder v. Thrifty Oil Co. (2000) 23 Cal.4th 429,
435.)

¿
Adequacy:

Class Counsel: A summary of Class Counsels’ experience
and a listing of all prior cases in which each named Class Counsel has been
approved by a court to act as lead or co-counsel. (See Dunk, supra, 48
Cal.App.4th at p. 1802.)

Class Representative(s): Provide evidence that each
proposed class representative has agreed to act as same and understands his or

her responsibilities. (See Soderstedt
v. CBIZ Southern California, LLC (2011) 197 Cal.App.4th 133, 155-156; Jones
v. Farmers Ins. Exchange (2013) 221 Cal.App.4th 986, 998-999).

D. Claim
Requirement (if applicable)

¿ If
class members are required to submit a claim to receive compensation, explain why a claim form is necessary and either 1) provide an estimate of the anticipated claims rate or 2) provide an explanation why a claims rate cannot be provided.

¿ Provide
a detailed explanation why a “claims made” settlement is appropriate in this case.

¿ Indicate
what actions class counsel will take to encourage claim submission.

¿ Explain
why the claims process is not so burdensome that relief would be inaccessible to class members (if applicable).

E. Miscellaneous

¿ If
appropriate, explain why the settlement includes terms that are outside the scope of the operative complaint. (Trotsky v. Los Angeles Fed. Savings & Loan Assn. (1975) 48 Cal.App.3d 134, 148.) If approval of settlement of a PAGA claim is requested provide a copy of Plaintiff’s notice letter to the LWDA.

.

Provide a copy of the
PAGA notice letter submitted to the LWDA.

¿ If
notice will be given in English only, explain why this is sufficient.

¿ A
statement of any affirmative obligations to be undertaken by the class member or class counsel and the reason for such obligations.

¿ Provide
information regarding any fee splitting agreement and whether the client has given written approval. (Mark v. Spencer (2008) 166 Cal.App.4th 219; Rules Prof. Conduct, rule 1.5.1; Cal. Rules of Court, rule 3.769.)

¿ Any
agreement that has injunctive relief against a class representative generally is not appropriate in a class action case. Provide the authority and factual reasons why this case is an exception. See Moniz, supra, 72 Cal.App.5th at 84. ("[T]he preclusive effect of a prior judgment is determined by the court in which it is asserted, not the court that rendered it." (Fireside Bank Cases (2010) 187 Cal.App.4th 1120, 1131 [115 Cal. Rptr. 3d 80].))

¿
Explanation as to why any class representative enhancement is reasonable, including what the class representative did beyond the expected services of any class representative. (Munoz v. BCI Coca-Cola Bottling Co. of Los Angeles (2010) 186 Cal.App.4th 399, 412; Radcliffe v. Experian Information Solutions Inc. (9th Cir. 2013) 715 F.3d 1157, 1165.) In PAGA settlements explanation should be provided as to why an incentive award is appropriate.

SETTLEMENT
AGREEMENT

The settlement
agreement should address the following:

A. The
Basics

¿ Class
definition. If a PAGA representative action is settled with a proposed Class Settlement consider whether there should be separate definitions for Class Members and Aggrieved Employees.

.

"Class Period" is defined
as the period from February 10, 2019 until the total workweeks reaches 1,749
workweeks. (Agreement, ¶1.12) "PAGA Period" is defined as the period from
February 10, 2022 until the end of the Class Period. (Agreement, ¶1.30) The parties must resolve any uncertainty
regarding the Class/PAGA Periods prior to preliminary approval being granted
and notice being distributed. Based on
current records, the parties and the Administrator must review and verify the
end dates of the Class/PAGA Periods and revise the Class/PAGA Period
definitions. Ensure that the Notice and
Proposed Order are also updated.

¿ Class
and Release Period: If the class and release periods extend beyond the
preliminary approval explain why this is appropriate.

B. Release
of Claims

¿ Scope:
The scope of any release given by class members must be defined with precision
and clarity. Any released claims not presented directly in the operative
complaint should be based on the facts alleged in the operative complaint. (See
Amaro v. Anaheim Arena Mgmt. (2021) 69 Cal. App. 5th 521, 537 and FN. 5;
Uribe v. Crown Building Maintenance Co. 70 Cal. App. 5th 986, 1005.)

¿ Class
cases which include a PAGA claim should have a separate release for the PAGA
claim tied to the facts alleged in the notice given to the LWDA. Id.

¿ If PAGA and Class
Settlement: The Release and Notice should provide an explanation that released
claims include all PAGA claims that could have been premised on the facts
alleged in the Plaintiff's LWDA Letter and aggrieved employees will release
PAGA claims even if class members request exclusion from the class. See Robinson
v. Southern Counties Oil Co. (2020) 53 Cal.App.5th 476.

· Why is the release
in ¶5.3 of the Agreement limited to "Non-Participating Class Members Who Are
Aggrieved Employees?" Why does it not
apply to Participating Class Members who are also Aggrieved Employees?

¿ A Civil
Code section 1542 waiver is generally not appropriate in a class action case as to the putative class members (if applicable). Provide the authority and factual reasons why this case is an exception. (Israel-Curley v. California Fair Plan (2005) 126 Cal.App.4th 123, 129; Salehi v. Surfside III Condominium Owners' Assn. (2011) 200 Cal.App.4th 1146, 1159–1161.)

¿ Release
Effective Date: Indicate the point in time at which the release will be deemed effective as to the absent class members. If the release will be effective before settlement funds are paid, explain why this is in the best interest of the class.

¿ Class
Data: If there are confidentiality provisions, explain why they are in the best interest of the Class and whether they will impede Class Counsel's ability to discharge fiduciary duties.

C. Monetary Terms of Settlement

¿
Settlement Amount: Indicate the amount of the gross settlement, how and when the

settlement will be paid, and information regarding
payment plan, if any. If a class claim is being settled with a PAGA claim the amounts allocated should be separated and paid only to the aggrieved employees.

¿
Deductions from the settlement fund: Indicate the amounts to be deducted from the gross settlement for attorneys' fees and costs, plaintiff incentive awards, administrative costs, PAGA payment and allocation of award to LWDA and the parties, and any other existing deductions.

¿ If
there are subclasses, explain why the monetary distribution is fair to each subclass. Ensure there is a class representative who fits the definition of each subclass.

¿
Information about how attorney fees will be calculated. The percentage method, with or without a lodestar cross-check, may be used in common fund cases. (Laffitte v. Robert Half Internat., Inc. (2016) 1 Cal.5th 480, 503.) In other cases, counsel should fully brief how the fees are calculated.

¿ If
wages are involved, explain how Defendant’s share of taxes will be paid.

¿
Whether, and under what circumstances, amounts may revert to Defendant, and a

justification for such reversion (if applicable). (Cundiff v. Verizon California, Inc. (2008) 167 Cal.App.4th 718, 728–729.)

¿ Payment
Formula: Amount and manner of distribution of the compensation to each class member, including the estimated amount each class member will receive and the timeline on which payments will be issued.

¿ Tax
allocation of settlement payments.

¿ Nature
of injunctive relief (if any), and valuation of such relief.

D. Notice Administration

The following
issues regarding notice administration should be addressed in the settlement

agreement. A copy
of the proposed notice must be attached to the settlement agreement as an

exhibit.

¿
Indicate the administrator for the settlement and why the bid for administration is fair.

¿ Provide
the qualifications and experience of the Administrator, including evidence that the settlement administrator has procedures in place to protect the security of class data and adequate insurance in the event of a data breach or defalcation of funds.

¿
Indicate how/when the administrator will receive the class list.

¿
Indicate whether the list will be updated by the administrator prior to the initial mailing by use of National Change of Address Registry.

¿ Provide
the deadline for the initial issuance of notice to class members.

¿ Ensure
the content of the notice complies with California Rules of Court, rule 3.766(d). In wage and hour cases the notice should indicate the specific amount the class member will receive and how that amount was calculated. A separate breakdown for PAGA payments should be provided. The terms of the release(s) should be reflected in the Notice.

Address the following issues in the Notice:

.

Funding Deadline: The Settlement Agreement states that Defendant will fund the settlement “no later than 30 calendar days after the Effective Date.” (¶4.3) However, the Notice states that Defendant will fund the settlement “not more than 14 days after the Judgment entered by the Court becomes final.” (¶3.1) Ensure that the deadlines set forth in the Agreement and Notice are consistent.

.

The Notice at ¶¶6 and 7 should clarify that requests for exclusion and written objections may be submitted to the Administrator via fax or mail, as set forth in the Settlement Agreement at ¶¶1.42, 7.5.1, 7.7.2.

.

According to ¶7 of the Notice, Class Members “can
obtain copies of the these [sic] documents by visiting the Court's website at
https://www.lacourt.org/Daos/v2public/DocumentImages/SearchCaseNumber and enter
the case number, 23STCV03047.” This link
directs Class Members to a general page rather than the page where they can
search for the case documents. Provide a
direct link to the appropriate page or include instructions explaining how
Class Members can navigate to the appropriate page.

¿ Ensure
the notice accurately reflects the Court’s current social distancing procedures
for attendance at hearings and review of court files. (Counsel should check the
Court website for most current information.)

¿
Indicate how and when payments will be processed.

¿ Indicate
how notices returned to the administrator as undeliverable will be handled.

¿Explain
how re-mailed notices, if any, will be handled. Will class members who receive
re-mailed notices be given an extended deadline to respond (i.e., opt-out,
object, and dispute workweeks)?

¿ Explain
how notice of any change of the date or location of the hearing will be given.

¿
Indicate whether there will be a settlement website. If so, provide the URL.

¿ If
publication notice will be given indicate the timing, locations, and manner by
which publication notice will be disseminated.

¿
Explain how notice of final judgment will be given to the class. (Cal. Rules of
Court, rule 3.771(b)) (e.g. Posted on administrator’s website.)

E. Responses to Notice

¿
Description of the procedures for submitting written objections, requests for exclusion, claim forms (if applicable) and disputes to estimated payments.

¿
Indicate the deadline to submit objections, requests for exclusion, claim forms (if applicable), and/or disputes to workweeks. Confirm the deadline is reasonable and that class members who receive re-mailed notices will be given an extension.

¿ The
objection procedure should be the same as the opt-out procedure, with the only requirement being that objections be mailed to the settlement administrator and not filed with the court.

¿ Do not
include language indicating that class members may only be heard at final approval if they have complied with all objection procedures or that they must use specific language to request exclusion, or, if a specific procedure is sought, explain why it is necessary. In
general, the court will hear from any class member who attends the final approval hearing and asks to speak regarding his or her objection.

F. Cy Pres Distribution

¿
Indicate the length of time from issuance for which settlement checks will remain valid.

¿ Identify
the fund to which uncashed checks will be directed and detail the steps that will be taken to ensure compliance with Code of Civil Procedure section 384. The Court’s Omnibus Trailer Bill of 2018 replaced the language of the prior statutory distribution scheme under Code of Civil Procedure, section 384 with a requirement that the Court re-open judgments following the final distribution of funds to include the cy pres in the judgment and to include the unclaimed amount, plus an unspecified amount of interest. Such information should be actively contemplated/provided for within the current terms of the settlement.

¿ Explain
why the cy pres distribution fulfills the purposes of the lawsuit or is otherwise appropriate. (State of California v. Levi Strauss & Co. (1986) 41 Cal.3d 460, 472; In re Microsoft I-V Cases (2006) 135 Cal.App.4th 706, 722; Nachshin v. AOL, Inc. (9th Cir. 2011) 663 F.3d 1034, 1038–1041; Dennis v. Kellogg Co. (9th Cir. 2012) 697 F.3d 858, 865; Code Civ. Proc., § 384.)

¿
Provide declarations by all parties and counsel disclosing any interest or involvement (or lack thereof) in the governance or work of the cy pres recipient.

G. MISCELLANEOUS

¿ Assure
the Settlement Agreement and Notice are consistent and that the Settlement Agreement (including revised versions) has been signed by all parties and counsel. Carefully proofread both.

.
Ensure that all internal references within the Settlement Agreement are accurate. For example, ¶1.21 refers to ¶9 regarding payment of the Gross Settlement Amount; however, ¶9 addresses the Motion for Final Approval.

.
Correct all typographical errors, including, but not limited to the following:

o Settlement
Agreement at ¶10.1 should state “If, for any reason the Court does not grant Preliminary Approval…” (Emphasis added.)

o Attorney fees
should be listed as “$23,333.33” in ¶3.2.2 of the Agreement.

o The Agreement contains two paragraphs numbered ¶3.2.4.1

and two paragraphs numbered ¶3.2.4.2.

o The Notice at ¶7
states: “You can obtain copies of the these documents by visiting the
Court's website at [link omitted] and enter the case number,
23STCV03047.” (Emphasis added.)

¿ The
Settlement Agreement and paperwork derivative thereof should not suggest that
the end result of court approval will be dismissal of the Action with prejudice
or entry of a Final Judgment and Order dismissing with prejudice all claims.
See
California Rules of Court, rule 3.769(h).

III. EXHIBITS TO
THE MOTION

¿
Provide proof of submission of the proposed settlement agreement to the LWDA.
(Lab. Code, § 2699, subd. (l)(2).)

¿ Include
a proposed Judgment, which should not include a dismissal or any findings not
contained in the Final Approval Order. (Cal. Rules of Court, rule 3.769(h).)

¿ All
exhibits should be bookmarked, as set forth in the Presiding Judge’s First
Amended General Order of May 3, 2019 re: Electronic Filing, available on the
Court website.

If the Settlement Agreement is modified pursuant to this
checklist, please submit both a red-lined copy showing changes made as well as
a final version signed by all parties and counsel. Do not submit an addendum in
lieu of a full amended settlement agreement including all operative settlement
terms.

Modify notice to match any alterations to the Settlement
Agreement.

Date: July 16, 2026

JUDICIAL
OFFICER